

the servient tenements, there was no termination of the driveway agreement with respect to their property. Further, because there was no common ownership of plaintiff's property as well as the servient properties, the doctrine of "merger" does not apply.

Defendants' reply contends that the driveway agreement's terms are unambiguous and should be construed to deny plaintiffs' property any status as a dominant tenement. The question is not so unambiguous as defendants suggest. The driveway agreement specifically permits access to what appears to be the very property plaintiffs now own. The correct interpretation of the agreement is an evidentiary determination not appropriate for determination on demurrer, as highlighted by defendants' argument about the subjective intention of Roberts in making the driveway agreement. (Reply, 3:8-11 [Roberts "entered into the Driveway Agreement with the belief that Roberts would maintain ownership over Parcel A"].)

11. 9:00 AM CASE NUMBER: C24-03268

CASE NAME: GILBERT BIGGS VS. CALIFORNIA GRAND CASINO

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS**

FILED BY: CALIFORNIA GRAND CASINO

TENTATIVE RULING:

Defendant brings three motions to compel further responses to discovery: (1) concerning a Request for Production of Documents; (2) concerning Special Interrogatories; and (3) concerning Form Interrogatories. In the underlying action, plaintiff alleges that he was injured on defendant's property. The matter originally was set to be heard on October 30, 2025, but was continued to this date on the Court's own motion.

Defendant served the First Set of Requests for Production of Documents on February 25, 2025.

Defendant served Special Interrogatories on plaintiff on February 25, 2025. Defendant served Form Interrogatories on March 28, 2025. Defendant granted a short extension, and plaintiff responded to all three discovery requests on May 1, 2025. All three responses were unverified.

Defendant sent a meet and confer letter addressing all three responses on May 13, 2025, and counsel conferred by telephone on May 15, 2025. There is some dispute as to whether plaintiff agreed to supplement by May 30, 2025, or at an unspecified date when more information was available. Plaintiff's counsel attests that he "advised defense counsel that Plaintiff would provide supplemental responses once the remaining medical records were received from Plaintiff's medical providers." (Balogh Decl, par. 4.) Defense counsel's email message of May 16, 2025, states that plaintiff "agreed to supplement your client's discovery responses within two weeks, by Friday, May 30, 2025." The message further asked that counsel to "please let me know if I've misstated anything." Nothing in the record indicates that counsel did so. Accordingly, the Court concludes that defense counsel engaged in a satisfactory meet and confer process, and that plaintiff's counsel had agreed to supplement the responses by May 30, 2025.

An unverified response is tantamount to no response at all. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.)

Defendant filed this motion on June 30, 2025, and it was set for hearing on October 30, 2025. Plaintiff served verified supplemental responses to the Form Interrogatories, Special Interrogatories, and Requests for Production of Documents on October 17, 2025, the same day that he filed his opposition to the motions to compel further responses. Plaintiff's opposition includes Separate Statements addressing the merits of the discovery issues, but relying largely on the supplemental responses.

The net effect of the supplemental responses, and their timing, is that defendant was put to the time and expense of filing motions to compel in order to obtain previously promised supplemental responses. Defendant's only opportunity to respond was in the time available for the reply, which is not adequate and leaves no opportunity to meet and confer concerning the adequacy of the supplemental responses. The plaintiff, having initially served unverified responses, is ordered to serve supplemental responses without objection.

Defendant seeks sanctions. As to the Form Interrogatories, Defendant seeks sanctions of \$1,960, based on 7.6 hours at \$250 per hour, plus a \$60 filing fee. As to the special interrogatories, Defendant seeks sanctions of \$2,235, based on 8.7 hours at \$250 per hour, plus a \$60 filing fee. As to the requests for production of documents, defendant seeks \$1,935, based on 7.5 hours at \$250 per hour, plus a \$60 filing fee.

As to the request for sanctions, the Court is mindful that plaintiff has supplemented its responses. Rule of Court 3.1348(a) specifically addresses this situation, providing: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." Failure to oppose or service of a supplemental response "shall not be deemed an admission that the motion was proper or that sanction should be awarded." (CRC 3.1348(b).)

The Code of Civil Procedure requires sanctions, under specified circumstances, against a party "who unsuccessfully makes or opposes a motion to compel" further responses to interrogatories or requests for production of documents, unless the party subject to the sanction acted with "substantial justification or that other circumstances make the imposition of the sanction unjust." (C.C.P. §§ 2030.300(d), 2031.300(c).) Under Code of Civil Procedure section 2023.030(a), the Court also has *separate* authority to impose a monetary sanction against a party engaging "in the misuse of the discovery process," which is defined to include "making, without substantial justification, an unmeritorious objection to discovery[.]" (CCP § 2023.010(e).)

The evident purpose of the provisions of the statute and Rules of Court is to assure that a party cannot unjustifiably refuse to respond to discovery, put the propounding party to the time and expense of filing a motion to compel, and then avoid any accountability by subsequently supplementing the discovery responses when the opposition to the motion is due. In this instance, plaintiff served unverified responses, promised to supplement by a specific date, and failed to supplement until a motion to compel was filed.

Monetary sanctions will be awarded. The hourly rate and hours spent are reasonable, and sanctions

will be awarded in the amounts requested, i.e., \$1,960, \$2,235, and \$1,935. Sanctions are awarded jointly and severally against counsel and the plaintiff, and are to be paid within 30 days of notice of entry of the order.

12. 9:00 AM CASE NUMBER: C24-03268
CASE NAME: GILBERT BIGGS VS. CALIFORNIA GRAND CASINO
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, DECLARATION OF ANAHIT TER-MAMBREYAN**
FILED BY: CALIFORNIA GRAND CASINO
TENTATIVE RULING:
See line 11.

13. 9:00 AM CASE NUMBER: C24-03268
CASE NAME: GILBERT BIGGS VS. CALIFORNIA GRAND CASINO
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S FURTHER RESPONSES TO FORM INTERROGATORIES, DECLARATION OF ANAHIT TER-MAMBREYAN**
FILED BY: CALIFORNIA GRAND CASINO
TENTATIVE RULING:
See line 11.

14. 9:00 AM CASE NUMBER: C25-00018
CASE NAME: MIKE ANDRADE VS. WALNUT CREEK FORD, INC.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: WALNUT CREEK FORD, INC.
TENTATIVE RULING:
Plaintiff has filed a statement of non-opposition. Defendant's motion to compel arbitration of individual PAGA claims and stay other proceedings in the related case between the same parties (No. C24-01999) is **granted**.

15. 9:00 AM CASE NUMBER: MSC19-02043
CASE NAME: GARAVENTA VS AZARI
***HEARING ON MOTION IN RE: TO DIMISS**
FILED BY: AGL ENTERPRISES, LLC A CALIF LIMITED LIABILITY COMPANY
TENTATIVE RULING:

Before the Court is a motion by defendant AGL Enterprises, LLC to dismiss the first amended complaint against it. The Court also has before it a motion by defendant Mehrzad Azari to dismiss the second, third, and fourth causes of action of the first amended complaint (see Line 17). The Court addresses both motions in this ruling. For the reasons set forth, the motions to dismiss are **granted** as stated below.

Background

Plaintiff Silvio Garaventa filed a complaint initiating this action in 2019. The action arises out of business disputes between Garaventa and defendant Mehrzad Azari. The operative first amended complaint filed November 4, 2019 alleges that at that time, Garaventa and Azari each owned 50 percent of defendant Pine Hollow Enterprises, a corporation, and they were also each directors of